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Case Number: 23STCV31247 Hearing Date: September 18, 2026 Dept: 515

NATURE OF PROCEEDINGS: Hearing on Motion for Summary

Judgment

The Motion for Summary Judgment is denied. The alternative Motion for Summary Adjudication is granted as to the third, fourth, fifth, sixth, tenth, and eleventh causes of action and is otherwise denied.

BACKGROUND

Plaintiff Joseph Palladino (Plaintiff) filed this action against RTX Corporation (RTX), Raytheon Company (Raytheon), and Pablo Gibu (Gibu) (collectively, Defendants), alleging that Defendants discriminated against him because of his age and a shoulder condition, harassed him, and retaliated against him during his final years as an opto-mechanical technician at Raytheon's El Segundo facility.

The causes of action are: (1) Age Discrimination; (2) Age Harassment; (3) Disability Discrimination; (4) Disability Harassment; (5) Failure to Provide Reasonable Accommodation; (6) Failure to Engage in the Interactive Process; (7) Failure to Prevent Discrimination, Harassment, and Retaliation; (8) Retaliation in Violation of the Fair Employment and Housing Act; (9) Whistleblower Retaliation; (10) Retaliation for Reporting Unsafe Conditions; (11) Wrongful Termination in Violation of Public Policy; and (12) Intentional Infliction of Emotional Distress. The Complaint also prays for punitive damages.

Defendants filed a Motion for Summary Judgment. Plaintiff filed an Opposition.

On August 4, 2026, the Court continued the hearing and ordered supplemental briefing on the timeliness of the second, third, fourth, fifth, and sixth causes of action. Plaintiff filed a Supplemental Opposition.

EVIDENTIARY OBJECTIONS

Plaintiff objects to the Moore, Green, and Manser Declarations. Defendants object to the Palladino, McAlpine, Garcia, Littleton, and Shah Declarations and to the Supplemental Palladino and McAlpine Declarations. Defendants' objection that conduct predates December 12, 2020 is overruled wherever it appears. The Court does not rule separately on Defendants' recurring objection that Plaintiff's declaration is self-serving and uncorroborated.

Plaintiff's objections to the Moore Declaration

Objection 1. Sustained as to Moore Decl., ¶ 3, and Ex. A. A party may not support its motion with its own responses to the opposing party's interrogatories. (Code Civ. Proc., § 2030.410.)

Plaintiff's objections to the Green Declaration

Objections 1 and 2. Overruled.

Plaintiff's objections to the Manser Declaration

Objection 1. Overruled.

Objection 2. Sustained as to the final sentence of Manser Decl., ¶ 6. Lacks foundation, because Manser states no basis for knowing Gibu's reasons. (Evid. Code, § 702, subd. (a).) Otherwise overruled.

Defendants' objections to the Palladino Declaration

Objection 7. Overruled as to Palladino Decl., ¶ 30, p. 5:10-12, to the extent offered to show that Gibu's statement reached Plaintiff while he was in the lab. Sustained to the extent offered for the truth of the statement. Hearsay. (Evid. Code, § 1200.)

Objection 10. Sustained as to the characterization, in Palladino Decl., ¶ 34, p. 5:23-25, of the overtime practices as a violation of the collective

bargaining agreement. Lacks foundation, because Plaintiff does not state the agreement's apportionment terms. (Evid. Code, § 702, subd. (a).) Otherwise overruled.

Objection 16. Sustained as to the characterization, in Palladino Decl., ¶ 38, p. 6:18, of the reprimand as unfair. Speculation and conclusion. (Evid. Code, §§ 403, 702, subd. (a).) Otherwise overruled.

Objection 40. Sustained as to Palladino Decl., ¶ 66, p. 12:3-4. Improper conclusion, because the sentence states the effect Plaintiff attributes to Xiong's position rather than a fact he observed. (Evid. Code, §§ 702, subd. (a), 800.)

Objection 84. Overruled as to Palladino Decl., ¶ 97, p. 16:16-17, to the extent offered to show that the statement was made and its effect on Plaintiff. Sustained to the extent offered for the truth of what management said. Hearsay. (Evid. Code, § 1200.)

Objection 88. Sustained as to Palladino Decl., ¶ 105, p. 18:1-2. Speculation as to Defendants' reason for the suspension. (Evid. Code, §§ 403, 702, subd. (a).)

Objections 11-13, 17, 20-24, 27-29, 32-39, 41, 71-73, 75, 83, 89, 90, 95, 96, and 99. Overruled.

Defendants' objections to the McAlpine Declaration

Objection 7. Sustained as to the last sentence of McAlpine Decl., ¶ 5, p. 3:15-17. Speculation as to Gibu's motive. (Evid. Code, §§ 403, 702, subd. (a).) Otherwise overruled.

Objection 10. Sustained as to McAlpine Decl., ¶ 8, p. 4:6-8. Improper legal conclusion. (Evid. Code, §§ 702, subd. (a), 800.) Otherwise, overruled.

Objections 3, 5, 6, and 9. Overruled.

Defendants' objections to the Garcia Declaration

Objection 3. Sustained as to the sentence in Garcia Decl., ¶ 4, p. 2:17-24, characterizing the overtime distribution as a violation of the collective

bargaining agreement. Improper legal conclusion. (Evid. Code, §§ 702, subd. (a), 800.) Otherwise overruled.

Objection 7. Sustained as to Garcia Decl., ¶ 5, p. 3:11-14. Speculation as to Gibu's motive. (Evid. Code, §§ 403, 702, subd. (a).) Otherwise overruled.

Objection 11. Sustained as to Garcia Decl., ¶ 8, p. 4:11-15. Speculation and lack of foundation. (Evid. Code, §§ 403, 702, subd. (a).) Otherwise overruled.

Objections 2, 4, and 6. Overruled.

Defendants' objections to the Littleton Declaration

Objection 17. Sustained as to the second sentence of Littleton Decl., ¶ 21. Improper conclusion. (Evid. Code, §§ 702, subd. (a), 800.) Otherwise overruled.

Objection 27. Overruled as to Littleton Decl., ¶ 29, p. 8:7-9, to the extent offered to show that the statement was made and its effect on Littleton and on the grievance. Sustained to the extent offered for the truth of what Raytheon management told Garriott, who is not Defendants' agent. Hearsay. (Evid. Code, § 1200.)

Objections 6, 16, 18, 20, and 21. Overruled.

Defendants' objections to the Supplemental Palladino and McAlpine Declarations

Defendants raised these objections in their response to the supplemental separate statement without numbering them, so the rulings identify the paragraphs objected to. (Defs.' Reply to Supp. Sep. Statement, at pp. 1-3.)

Supp. Palladino Decl., ¶¶ 134 and 135. Sustained as to the statements that Defendants acted because of Plaintiff's disability. Speculation as to another person's motive. (Evid. Code, §§ 403, 702, subd. (a).) Otherwise overruled.

Supp. McAlpine Decl., ¶ 5. Sustained as to the last sentence. Speculation as to Gibu's motive. (Evid. Code, §§ 403, 702, subd. (a).) Otherwise overruled.

Supp. Palladino Decl., ¶¶ 133 and 137-145, and Supp. McAlpine Decl., ¶¶ 4, 7, and 8. Overruled.

The Court declines to rule on the remaining objections of both parties because the evidence objected to is not material to the disposition of the Motion. (Code Civ. Proc., § 437c, subd. (q).)

LEGAL STANDARD

A defendant moving for summary judgment or summary adjudication bears the burden of persuasion that one or more elements of the cause of action cannot be established, or that a complete defense to it exists. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850.) The moving defendant bears an initial burden of production to make a prima facie showing that no triable issue of material fact exists. Once the defendant carries that burden, the burden shifts to the plaintiff to make a prima facie showing that a triable issue exists. (*Id.* at pp. 850-851.) The Court considers all of the evidence and all reasonable inferences from it in the light most favorable to the opposing party. (*Id.* at p. 843; Code Civ. Proc., § 437c, subd. (c).) A motion for summary adjudication shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for punitive damages, or an issue of duty. (Code Civ. Proc., § 437c, subd. (f)(1).)

Where the Court identifies a ground of law that is dispositive when applied to an undisputed material fact in the separate statements, it may reach that ground even though the moving party did not explicitly tender it, provided the opposing party is given an opportunity to respond and to show a triable issue of fact material to that ground. (*Juge v. County of Sacramento* (1993) 12 Cal.App.4th 59, 70.)

ANALYSIS

I. Timeliness

Defendants contend that conduct before December 12, 2020 is time-barred and that the third through sixth causes of action are barred in their entirety because the disability-related conduct ended on June 23, 2020. In his Supplemental Opposition, Plaintiff argues that the disability discrimination claim accrued only when an adverse action followed December 12, 2020, that the continuing violation doctrine reaches the earlier conduct on all five claims, that a constructive discharge claim accrues at resignation, and that conduct outside the period is admissible as evidence of motive.

The Court rejects Defendants' forfeiture argument because Plaintiff responded, at the Court's invitation, to a ground the Court raised after his Opposition was filed. Accrual is also within the scope of the order, because a limitations defense first asks when the cause of action accrued.

A complaint alleging a violation of the Fair Employment and Housing Act "shall not be filed after the expiration of three years from the date upon which the unlawful practice or refusal to cooperate occurred." (Gov. Code, § 12960, subd. (e)(5).) Here, Plaintiff filed his charge with the Civil Rights Department on December 12, 2023. (Moore Decl., ¶ 6, Ex. D.) Therefore, conduct before December 12, 2020 is actionable only if some doctrine brings it within the period. The age discrimination and retaliation claims rest on the February through May 2022 suspension, transfer, and pay reduction, and they are timely. Plaintiff's argument that the period runs from his November 2022 resignation depends on a constructive discharge. For the reasons stated below, the Court concludes that the resignation was not a constructive discharge.

A. Disability Claims

A cause of action ordinarily accrues when it is complete with all of its elements, which are wrongdoing, harm, and causation. (*Aryeh v. Canon Business Solutions, Inc.* (2013) 55 Cal.4th 1185, 1191.) A

disability discrimination claim is complete when the employer takes an adverse employment action because of the disability, and an accommodation or interactive process claim is complete when the employer fails to accommodate or to engage. (Gov. Code, § 12940, subs. (a), (m), (n).) The continuing violation doctrine allows liability for conduct outside the period "if it is sufficiently connected to unlawful conduct within the limitations period." (*Richards v. CH2M Hill, Inc.* (2001) 26 Cal.4th 798, 802 (Richards).)

It applies where the employer's actions are "(1) sufficiently similar in kind ...; (2) have occurred with reasonable frequency; (3) and have not acquired a degree of permanence." (*Id.* at p. 823.) The doctrine requires at least one act of the same kind within the limitations period. (*Trovato v. Beckman Coulter, Inc.* (2011) 192 Cal.App.4th 319, 326-327 (Trovato).)

Here, the third through sixth causes of action accrued no later than July 2020, and no disability-related act falls within the period. Plaintiff reported the aggravated shoulder condition in May 2020, worked under modified duty from May 22 to June 22, 2020, and returned to full duty without restrictions on June 23, 2020. (Palladino Decl., ¶¶ 44, 49; Pl.'s Exs. 46, 142.) He submitted no

further medical records and requested no further accommodation after that date. (12/5 Dep. 98:4-10.) The Court does not treat anything before the May 2020 request as disability-related, because Defendants learned of the condition only then. The last disability-related act Plaintiff identifies is Gibu's denial of overtime on July 10 and 11, 2020, attributed to a restriction that had lifted the month before. (Palladino Decl., ¶¶ 44, 48, 53; Pl.'s Ex. 143.) Plaintiff adds that Gibu continued to withhold opportunities "thereafter" because of the accommodation request, but he gives no date and no instance. (Palladino Decl., ¶¶ 44, 47.)

Plaintiff argues that the claim accrued after December 12, 2020 because the pay cut, the loss of overtime, and the 2022 transfer were adverse actions that a grievance did not undo. However, an adverse action begins the period for a disability claim only if it was taken because of the disability. Plaintiff offers no evidence connecting any post-2020 action to the shoulder, and he testified that no one at Raytheon made a negative comment about the injury. (9/23 Dep. 177:24-178:1.) His supplemental declaration describes the 2021 and 2022 treatment as reductions in hours, loss of responsibilities, and a transfer "while younger employees" received overtime, and it attributes that treatment to his accommodation request only as something he "felt." (Supp. Palladino Decl., ¶¶ 134, 137.) Plaintiff's belief about Defendants' motive is not evidence of that motive. Thus, the disability discrimination claim accrued with the July 2020 overtime denials, and the accommodation and interactive process claims accrued no later than June 23, 2020.

Nor does the continuing violation doctrine make these claims timely. The 2021 overtime grievances and the 2022 suspension, transfer, and pay reduction are not acts of the same kind as the July 2020 denials, because nothing in the record ties them to the disability. (Trovato, supra, 192 Cal.App.4th at pp. 326-327.) Plaintiff's reliance on Richards is misplaced. There, the employer's failures to accommodate continued into the limitations period. (Richards, supra, 26 Cal.4th at pp. 812, 823-824.) Here, the accommodation succeeded, the process ended in June 2020, and Plaintiff sought nothing further. Accordingly, the third, fourth, fifth, and sixth causes of action are time-barred, and summary adjudication of those causes of action is granted.

B. Age Harassment

Defendants contend that the harassing conduct before December 12, 2020 was

neither similar to nor recurring with the later conduct, that it consisted of personnel decisions unconnected to age, and that it acquired permanence no later than 2018, when Plaintiff grieved the written warning and Gibu remained.

Plaintiff argues that Gibu's treatment of the lab's older technicians was one course of conduct from 2019 through his departure, and that he did not learn that informal resolution was futile until 2022.

Here, the second cause of action is timely, because acts contributing to the hostile environment fall within the period. Plaintiff's overtime earnings continued to fall through 2021 and 2022 while younger technicians received more, and he grieved the distribution repeatedly in 2021. (Palladino Decl., ¶¶ 36, 61-66, 99; Garcia Decl., ¶ 4.) The work station Gibu placed at the cell entryway in 2020 stayed there until Plaintiff left the E3 Lab in February 2022. (Palladino Decl., ¶¶ 45-46.) From November 2021, Plaintiff watched Gibu give Garcia, another technician in his late fifties, a demeaning assignment and withhold his overtime. (Palladino Decl., ¶ 46; Garcia Decl., ¶ 5.) In 2022, Defendants suspended Plaintiff, transferred him to a basement lab where he worked alone, and cut his pay. (Palladino Decl., ¶¶ 97, 108.) McAlpine places Gibu's favoritism toward younger employees and his exclusion of Plaintiff in 2021 and 2022. (Supp. McAlpine Decl., ¶¶ 4-5.)

Whether the 2018 warning, the 2019 and 2020 overtime cuts, the 2020 reprimands, and the October 2020 revocation of the door code join that course of conduct depends on the three Richards factors, and Defendants have not established as a matter of law that any of them is missing. First, the acts are of a kind. Before and after December 12, 2020, the same manager denied overtime, excluded Plaintiff from the lab's common space and access, and disciplined him on grounds later withdrawn. (Richards, *supra*, 26 Cal.4th at p. 823.) Defendants' contention that the earlier acts were personnel decisions unconnected to age fails for the reasons stated in the harassment analysis below.

Second, the frequency is reasonable. Defendants count only the 2018 warning and the February 2020 reprimand and find 18 months between them. However, the overtime denials ran continuously from 2019, four incidents fell between January and May 2020, and the door code revocation followed in October. (Palladino Decl., ¶¶ 34-36, 38-41, 57.)

Third, permanence means "that an employer's statements and actions make

clear to a reasonable employee that any further efforts at informal conciliation to obtain reasonable accommodation or end harassment will be futile." (Richards, supra, 26 Cal.4th at p. 823.) Plaintiff grieved the 2018 warning and Defendants rescinded it, and the May 2020 accusation of unauthorized overtime was overturned. (Palladino Decl., ¶¶ 31-32, 57.) Because his grievances through 2020 succeeded, Plaintiff had reason to keep grieving. Defendants read Plaintiff's statement that no continuous pattern was established until years later as a concession of permanence. (Opp., at p. 10:14-17.) Plaintiff there describes the 2018 warning as an isolated and remedied event, which is not a concession that the pattern had become permanent. A reasonable trier of fact could find that Plaintiff was not on notice that conciliation was futile until his 2022 complaints were closed without investigation. (Yanowitz v. L'Oreal USA, Inc. (2005) 36 Cal.4th 1028, 1059-1060 (Yanowitz).)

Accordingly, the Court cannot determine as a matter of law that the continuing violation doctrine does not apply to the second cause of action.

C. Earlier Conduct

Whatever the scope of the harassment claim, conduct outside the period is admissible as background evidence of the motive behind timely acts. (Richards, supra, 26 Cal.4th at p. 812; National Railroad Passenger Corp. v. Morgan (2002) 536 U.S. 101, 113.) The Court considers the 2018 through 2020 evidence for that purpose, and not as an independent basis for the discrimination or retaliation claims.

II. Age Discrimination

To defeat a discrimination claim under the Fair Employment and Housing Act on summary judgment, the employer must show either that the plaintiff cannot establish a prima facie case or that legitimate, nondiscriminatory reasons explain the challenged actions. In this context, "legitimate" reasons are "reasons that are facially unrelated to prohibited bias, and which, if true, would thus preclude a finding of discrimination." (Guz v. Bechtel National, Inc. (2000) 24 Cal.4th 317, 354-356, 358 (Guz).) If the employer makes that showing, the plaintiff must demonstrate "such weaknesses, implausibilities, inconsistencies, incoherencies, or contradictions in the employer's proffered legitimate reasons for its action that a reasonable factfinder could rationally find them 'unworthy of credence.'" (Hersant v. Department of Social Services (1997) 57 Cal.App.4th 997, 1005.)

Defendants identify legitimate reasons for the February 2022 suspension, the

transfer to the ASIC Lab, the March 2022 written warning, and the pay reduction. In written statements, 14 coworkers complained of Plaintiff's conduct, Labor Relations investigator Buchanan investigated and reported, and management determined that Plaintiff's hourly rate exceeded the cap for his classification. (Pl.'s Ex. 73, RAYTHEON-PALLADINO 000497-499; Palladino Decl., ¶ 108.) The burden therefore shifts to Plaintiff.

Here, Plaintiff's evidence raises triable issues of pretext and discriminatory animus. First, Gibu was the E3 Lab operations manager who initiated or participated in the challenged actions. He told McAlpine that he wanted to "get rid of the old guys in his lab" and wanted "a new, young, fresh group," and he said in Garcia's presence that he wanted to "get rid of the older guys." (McAlpine Decl., ¶ 4; Garcia Decl., ¶ 4.) Defendants characterize these statements as stray remarks. A discriminatory comment made outside the context of an employment decision may still be relevant circumstantial evidence of discrimination. (Reid v. Google, Inc. (2010) 50 Cal.4th 512, 538-539; Gov. Code, § 12923, subd. (c).) Gibu spoke as the manager of the lab, and he cut Plaintiff's overtime, issued the discipline Plaintiff challenges, and revoked the open-and-close access Plaintiff had held for 15 years. (Palladino Decl., ¶¶ 31, 36, 57.)

Second, Plaintiff's overtime earnings fell from \$52,593 in 2018 to \$32,933 in 2019 and continued to fall through his final years, while younger technicians received more overtime. (Palladino Decl., ¶¶ 36, 99; Garcia Decl., ¶ 4; Pl.'s Exs. 36-41.) Defendants respond that Plaintiff declined to present the aggregate time records of 28 union employees. Raw age comparisons will not by themselves support an inference of discrimination. (Guz, supra, 24 Cal.4th at pp. 367-368.) However, the overtime evidence here corroborates Garcia's account of how Gibu distributed hours in the same lab during the same period.

Third, Plaintiff's supervisor Xiong testified that from 2018 onward he could not recall Plaintiff doing anything that warranted discipline, and that he never observed Plaintiff violating the company rule invoked against him. (Xiong Depo. 63:2-9, 119:10-14.)

Fourth, the investigation underlying the 2022 discipline did not substantiate the hostile work environment allegations. The investigator instead described a "strong personality that can be difficult to work with" and found that Plaintiff's behavior fell short of company values and made some employees

uncomfortable. (Pl.'s Ex. 73, RAYTHEON-PALLADINO 000499.) Defendants may argue those findings to a jury as their honest belief. However, a factfinder could also read the report as undermining the discipline, because the investigator declined to sustain the allegation that prompted the suspension. Littleton, who attended every employee interview in the October 2021 human resources investigation, states that it concluded Gibu had created a hostile working environment, and that Brost said the following month that she wanted to get rid of Palladino rather than Gibu. (Littleton Decl., ¶¶ 20, 22.) A trier of fact could find Defendants' justifications unworthy of credence. (Guz, supra, 24 Cal.4th at p. 363.)

Defendants contend that Plaintiff's replacement, Randy Okamoto, was older than Plaintiff or close to his age. Plaintiff disputes that Okamoto replaced him. Where the manager stated an intent to remove older technicians, the age of one successor does not resolve whether the manager acted because of age. Defendants further contend that Gibu, at 51, was in the same protected class. That fact weakens the inference of bias, but a manager over 40 can still act on age.

Defendants also contend that a written reprimand and a paid administrative leave are not adverse employment actions, citing *Akers v. County of San Diego* (2002) 95 Cal.App.4th 1441, 1457. In *Akers*, the court held that an adverse employment action extends beyond ultimate acts such as hiring, firing, demotion, and refusal to promote. (Id. at pp. 1455-1457.) In any event, Plaintiff also identifies the transfer, the loss of lead and incentive pay, and the loss of overtime opportunity. Those actions materially affected the terms and conditions of his employment. Accordingly, summary adjudication of the first cause of action is denied.

III. Age Harassment

The Legislature has declared that a single incident of harassing conduct suffices to create a triable issue where it unreasonably interferes with work performance or creates an intimidating, hostile, or offensive working environment, that the existence of a hostile environment depends on the totality of the circumstances, and that harassment cases are rarely appropriate for disposition on summary judgment. (Gov. Code, § 12923, subds. (b), (c), (e).) Official employment actions can themselves contribute to the hostile message when they establish a widespread pattern of bias. (*Roby v. McKesson Corp.* (2009) 47 Cal.4th 686, 709 (*Roby*).)

Here, Plaintiff's evidence permits a finding of a hostile environment based on age. Gibu stated his intent to replace the lab's older technicians. (McAlpine Decl., ¶ 4.) He then excluded Plaintiff alone from the door code, leaving him locked out until a coworker admitted him, and he moved Plaintiff's work station to the cell entryway, where coworkers laughed at its placement. (McAlpine Decl., ¶ 5; Palladino Decl., ¶¶ 45, 57.) McAlpine, an operations manager with four decades at the facility, had never seen a Raytheon employee treated so negatively, and she never saw Gibu revoke a younger employee's lab access or move a younger employee's work station out of the main lab area. (McAlpine Decl., ¶ 5.) After Garcia reported Gibu in November 2021, Gibu relocated Garcia's work station, assigned him work far below his skill level for six months, and withheld his overtime while roughly 300 hours went to younger employees. (Garcia Decl., ¶ 5.) The five employees moved out of or terminated from the E3 Lab under Gibu were all over 50. (McAlpine Decl., ¶ 7.)

Defendants contend that Plaintiff cannot rely on Gibu's statement because he did not hear it. (*Lyle v. Warner Bros. Television Productions* (2006) 38 Cal.4th 264, 285.) The rule in *Lyle* concerns harassment aimed at third parties that a plaintiff seeks to add to his own environment. Plaintiff offers Gibu's statement as evidence of the motive behind conduct he experienced daily, and McAlpine reported the statement to him while he was still in the lab. (Palladino Decl., ¶ 30.)

Defendants further rely on *Reno v. Baird* (1998) 18 Cal.4th 640, 646-647, for the rule that personnel management decisions belong to discrimination claims. The Court applies *Roby* instead, because the personnel actions Plaintiff identifies accompany biased statements and socially exclusionary conduct from which a jury could find a hostile message. (*Roby*, supra, 47 Cal.4th at pp. 708-709.) Defendants also cite *Beltran v. Hard Rock Hotel Licensing, Inc.* (2023) 97 Cal.App.5th 865, 879, but the court there applied Government Code section 12923 to a different record. Because Gibu personally engaged in the alleged harassing conduct, the claim survives against him individually as well. Accordingly, summary adjudication of the second cause of action is denied as to all Defendants.

IV. Retaliation

To establish retaliation under the Fair Employment and Housing Act, a plaintiff must show protected activity, an adverse employment action, and a

causal link between the two. (Yanowitz, supra, 36 Cal.4th at p. 1042.) A series of subtle yet damaging injuries, considered collectively, can constitute an adverse employment action. (Id. at pp. 1052, 1055-1056.)

Here, Plaintiff engaged in protected activity on January 31, 2022, when he complained to Defendants' ethics function of harassment and retaliation by Gibu, and on February 3, 2022, when he told ethics investigator Forbes that Gibu wanted to get rid of the older technicians and named McAlpine as a witness. (Defs.' Ex. 128, RAYTHEON-PALLADINO 000525; Palladino Decl., ¶ 85.) Two days after the January 31 complaint, Defendants suspended Plaintiff. (Palladino Decl., ¶ 87; Littleton Decl., ¶ 26.) In the weeks that followed, management collected written statements about Plaintiff from his coworkers. (Xiong Depo. 61:20-62:9.) Defendants then issued discipline on allegations their investigator declined to substantiate, transferred Plaintiff to the ASIC Lab in the basement, and cut his pay. (Pl.'s Ex. 73, RAYTHEON-PALLADINO 000499; Palladino Decl., ¶¶ 97, 108.) Brost testified that the findings of Beck's investigation were "what caused the movement, transfer." (Brost Depo. 59:5-9.)

Defendants respond that temporal proximity alone cannot establish pretext once the employer offers legitimate reasons, citing *Arteaga v. Brink's, Inc.* (2008) 163 Cal.App.4th 327, 353-354. Plaintiff offers more than timing. No one contacted McAlpine until Raytheon's counsel called her in August 2024, and no one contacted Garcia, who had reported the same conduct. (McAlpine Decl., ¶ 8; Garcia Decl., ¶ 8.) Defendants investigated the complainant rather than the accused and, as Littleton heard, declined to remove Gibu because "that move would satisfy Joe." (Littleton Decl., ¶¶ 8, 23; Pl.'s Ex. 156.)

Defendants also contend that Plaintiff's cat's paw theory fails because he cannot show the decision makers relied on Gibu. Brost testified that she acted on an investigation whose subject was Plaintiff, and Buchanan reported that Gibu and Xiong, when interviewed, described their difficulties managing Plaintiff. (Pl.'s Ex. 73, RAYTHEON-PALLADINO 000498.) Whether Gibu's stated animus entered the decision through those channels is a question of fact. Accordingly, summary adjudication of the eighth cause of action is denied.

V. Whistleblower Retaliation

Labor Code section 1102.6 governs this claim. The employee must show by a preponderance of the evidence that protected activity was a contributing factor

in the adverse action. The employer must then demonstrate by clear and convincing evidence that it would have taken the action for legitimate, independent reasons in any event. The McDonnell Douglas framework does not apply. (Lawson v. PPG Architectural Finishes, Inc. (2022) 12 Cal.5th 703, 716, 718.)

Defendants contend that Plaintiff engaged in no protected activity before his employment ended.

Here, Plaintiff disclosed to supervisors, human resources, and ethics personnel what he reasonably believed were violations of law, including age harassment and sustained failures to post and distribute overtime, both before and throughout 2022. (Defs.' Ex. 128, RAYTHEON-PALLADINO 000525; Palladino Decl., ¶¶ 61-66, 85, 105, 123; Littleton Decl., ¶ 46; Pl.'s Ex. 91.) The suspension two days after the January 31, 2022 complaint, followed by the transfer and the pay cut, permits a finding that the disclosures were a contributing factor. Littleton also states that on February 8, 2022, the union business agent asked him not to file a grievance on Plaintiff's behalf and told the stewards that Plaintiff would be terminated if one were filed. (Littleton Decl., ¶ 29.) Received only for the fact that it was made, the statement shows that the stewards were warned off a grievance days after the suspension and that no grievance followed. That sequence is consistent with the inference the timing supports. On this record, Defendants have not established their same-decision defense by clear and convincing evidence as a matter of law. Accordingly, summary adjudication of the ninth cause of action is denied.

VI. Safety Complaints

Labor Code section 6310 protects employees who complain about workplace safety or health conditions. Here, Defendants presented evidence that Plaintiff made no safety or health complaint, including his testimony that he could identify none beyond the interpersonal hostility at issue in his other claims. (9/23 Dep. 164:1-18.) Plaintiff did not respond to Defendants' argument on this claim and states that Defendants' facts on it are undisputed. Defendants carried their initial burden, and Plaintiff failed to raise a triable issue. (Code Civ. Proc., § 437c, subd. (p)(2).) Accordingly, summary adjudication of the tenth cause of action is granted.

VII. Constructive Discharge

Because Plaintiff resigned, the eleventh cause of action requires a constructive discharge. Plaintiff must show that Defendants intentionally created or knowingly permitted working conditions so intolerable or aggravated at the time of his resignation that a reasonable employer would realize a reasonable person in his position would be compelled to resign. (Turner v. Anheuser-Busch, Inc. (1994) 7 Cal.4th 1238, 1251 (Turner).)

The conditions must be “sufficiently extraordinary and egregious to overcome the normal motivation of a competent, diligent, and reasonable employee to remain on the job.” (Id. at p. 1246.) A demotion with a pay cut does not by itself amount to constructive discharge, and the standard is objective. (Id. at pp. 1247-1248.)

Here, the undisputed evidence of how Plaintiff left defeats that showing. The suspension, the discipline, the transfer, and the pay reduction all occurred between February and May 2022, six months before he resigned. Plaintiff began running pension calculations on April 17, 2022, and requested a retirement application packet pre-populated with the dates he selected. (Giancaterino Decl., ¶¶ 11-12, Exs. A, D.) Less than three months before he left, he told his ASIC Lab manager that he had decided to retire. (Manser Decl., ¶ 8.) He could recall nothing else that factored into his decision and nothing offensive or upsetting occurring in September, October, or November 2022 beyond what he had already described. (9/23 Dep. 163:11-24.) On or about November 17, 2022, after meeting with a retirement specialist about the deadline to lock in a favorable interest rate, he elected a five-year annuity paying \$22,614.69 per month. The same election would have paid \$17,456.40 per month had his benefit commenced a month later. (Giancaterino Decl., ¶¶ 13-15, Ex. E.)

In October 2022, Plaintiff submitted a written request to return to his position in the E3 Lab, and he confirmed at deposition that he wanted to return even though Gibu was still there. (9/23 Dep. 160:4-9; Pl.’s Ex. 93.) By seeking a position in the environment he describes as intolerable, Plaintiff provided evidence that a reasonable person would not have felt compelled to resign. The months between the last aggravating acts and the resignation support the same inference, because the standard measures the conditions at the time of resignation. (Turner, supra, 7 Cal.4th at p. 1251.)

Plaintiff presents evidence that Defendants never adequately investigated

his complaints and that his mental health had suffered for years. The jury will consider those grievances through the surviving claims. However, that evidence does not establish that quitting was Plaintiff's only reasonable alternative when he sought reinstatement to the E3 Lab and timed his departure to a pension deadline he selected. Thus, Plaintiff has not raised a triable issue of constructive discharge, and without an actual or constructive discharge the wrongful termination claim fails. Accordingly, summary adjudication of the eleventh cause of action is granted.

VIII. Failure to Prevent

Defendants contend that Plaintiff never complained.

A claim for failure to prevent discrimination, harassment, or retaliation under Government Code section 12940, subdivision (k) depends on the underlying claims under the Fair Employment and Housing Act. (Trujillo v. North County Transit Dist. (1998) 63 Cal.App.4th 280, 289.)

Here, the age discrimination, age harassment, and retaliation claims survive, and the January 31, 2022 ethics complaint refutes Defendants' contention. (Defs.' Ex. 128, RAYTHEON-PALLADINO 000525.) No one who handled the complaints contacted McAlpine, whom Plaintiff named as a witness, or Garcia, who had reported the same conduct. (McAlpine Decl., ¶ 8; Garcia Decl., ¶ 8.) Littleton states that the October 2021 investigation identified Gibu as the source of the hostile environment and that Defendants disciplined no one. (Littleton Decl., ¶¶ 20-21.) A factfinder could find that Defendants failed to take reasonable steps to prevent and correct the conduct. Accordingly, summary adjudication of the seventh cause of action is denied.

IX. Emotional Distress

Defendants contend that workers' compensation exclusivity bars the twelfth cause of action and that the conduct Plaintiff describes was not outrageous.

Conduct that violates the Fair Employment and Housing Act falls outside the compensation bargain. Thus, the exclusivity doctrine does not bar a claim resting on that conduct. (Light v. Department of Parks & Recreation (2017) 14 Cal.App.5th 75, 96-97, 101.)

Here, a jury must decide whether the conduct was outrageous, for the same reasons the harassment claim survives. A factfinder could conclude that a multi-year campaign of age-based exclusion and retaliatory discipline against a 36-year employee, ending with his isolation in a basement lab, exceeds all bounds tolerated in a civilized community. Plaintiff presents evidence of a resulting diagnosis of severe depression and anxiety. (Palladino Decl., ¶ 130; Pl.'s Ex. 184.) Accordingly, summary adjudication of the twelfth cause of action is denied as to all Defendants.

X. Punitive Damages

Summary adjudication of a punitive damages claim requires Defendants to establish as a matter of law that no officer, director, or managing agent committed, authorized, or ratified malicious or oppressive conduct. (Civ. Code, § 3294, subd. (b).) Gibu's statements of intent and the discipline imposed on unsubstantiated allegations would permit a finding of malice or oppression as to Gibu individually, and the managing agent requirement does not limit his personal exposure.

As to the entity Defendants, a managing agent is an employee who exercises substantial discretionary authority over decisions that ultimately determine corporate policy, and the scope of that authority is ordinarily a question of fact. (*White v. Ultramar, Inc.* (1999) 21 Cal.4th 563, 567, 576-577.) Defendants invoke *Roby*, which limited corporate policy to "formal policies that affect a substantial portion of the company and that are the type likely to come to the attention of corporate leadership." (*Roby*, *supra*, 47 Cal.4th at pp. 714-715.)

Here, the individuals Plaintiff identifies are not situated as the local supervisor in *Roby* was. Schenkenberger imposed the suspension, convened the Step 2 grievance hearing, and held the Employee and Labor Relations directorship covering the bargaining unit at the El Segundo site. Weiss and Rips sat at the ethics function that closed Plaintiff's complaints. (Littleton Decl., ¶¶ 8, 26, 36; Palladino Decl., ¶¶ 115-116; Pl.'s Exs. 111, 112.) Plaintiff offers evidence that these individuals applied the policies governing discrimination complaints and union discipline across the workforce, that none contacted the witnesses Plaintiff named, and that the discipline, transfer, and pay cut remained in place. (McAlpine Decl., ¶ 8; Garcia Decl., ¶ 8.) On this record, the Court cannot determine as a matter of law whether their authority extends to formal policy of the kind *Roby* describes, or

whether their conduct ratified the underlying acts. Accordingly, summary adjudication of the punitive damages claim is denied as to all Defendants.

XI. RTX as Employer

Defendants contend that RTX never employed Plaintiff because Raytheon, a wholly owned RTX subsidiary, was his employer. With Exhibit A to the Moore Declaration excluded, Defendants rely principally on the Green Declaration.

Centralized control of labor relations is the most important of the factors the integrated enterprise test weighs. (*Laird v. Capital Cities/ABC, Inc.* (1998) 68 Cal.App.4th 727, 737-738.)

Here, Plaintiff's evidence creates a triable issue of an integrated employment relationship. Human resources business partner Beck testified that she uses the name "Raytheon" to refer to RTX Corporation. (Beck Depo. 13:22-14:3.) The Total Rewards department that administered Plaintiff's compensation and pension serves RTX and its subsidiaries, including Raytheon. (Giancaterino Decl., ¶ 2.) RTX issued the Non-Retaliation Policy governing Plaintiff's workplace, and RTX-level ethics personnel handled and closed his complaints. (Palladino Decl., ¶¶ 71, 115-116; Pl.'s Exs. 31, 111, 112.) The Court does not reach Plaintiff's separate argument that RTX is liable as an agent of the employer under Government Code section 12926, subdivision (d). Accordingly, summary adjudication of the issue whether RTX employed Plaintiff is denied.

XII. Compensatory Damages

Defendants separately seek adjudication that Plaintiff cannot establish compensatory damages because his pension payments exceed his former salary. Summary adjudication is available only as to a cause of action, an affirmative defense, a claim for damages under Civil Code section 3294, or an issue of duty. (Code Civ. Proc., § 437c, subd. (f)(1); *DeCastro West Chodorow & Burns, Inc. v. Superior Court* (1996) 47 Cal.App.4th 410, 419, 422.) The request also fails on its terms. The annuity pays for five years from December 1, 2022, but Plaintiff declares that he intended to work another decade, and he presents evidence of diagnosed emotional distress. (Giancaterino Decl., ¶¶ 14-15, Ex. E; Palladino Decl., ¶ 130; Pl.'s Ex. 184.)

Defendants also request attorney fees and costs under Government Code section 12965 based on Plaintiff's abandonment of one cause of action. A

prevailing defendant recovers fees under that section only on a showing that the action was frivolous, unreasonable, or groundless, and Defendants have made no such showing. Accordingly, summary adjudication of the issue of compensatory damages is denied, and the request for attorney fees is denied.

CONCLUSION

The Motion for Summary Judgment is denied. The alternative Motion for Summary Adjudication is granted as to the third, fourth, fifth, sixth, tenth, and eleventh causes of action and is otherwise denied.